

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DERRICK MASON,

Plaintiff,

COMPLAINT

10 CV 9697 (PGG) (AJP)

- against -

THE CITY OF NEW YORK and DAVID DESIMONE,
"JOHN" GOLDMAN, the first name being fictitious
and presently unknown, "JOHN" SMITH, the first
name being fictitious and presently unknown, and
JOHN DOE, the name being fictitious and
presently unknown, employees of the New York
City Police Department,

Defendants.

Jury Trial Demanded

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Derrick Mason, by his attorney, Matthew Flamm, alleges the following
upon information and belief as his Complaint:

Nature of the Action

1. This civil rights action arises from defendants' May 25, 2009 arrest
of and assault on Derrick Mason. Plaintiff seeks declaratory relief pursuant to 28
U.S.C. §2201 as well as compensatory and punitive damages for violation of his
civil rights under 42 U.S.C. §1983.

Jurisdiction and Venue

2. This action arises under the United States Constitution and 42
U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C.
§1331 and §1343(3). Plaintiff asserts jurisdiction over the City of New York under
28 U.S.C. §1367. Plaintiff requests that this Court exercise pendent jurisdiction
over those state law claims arising out of the same common nucleus of operative
facts as do plaintiff's federal claims.

3. Under 28 U.S.C. §1391(b) and (c), venue is proper in the Southern District of New York because defendant City of New York resides in that judicial District.

Parties

4. Plaintiff DERRICK MASON is a citizen of the United States of America residing in the State and City of New York, County of Kings. He is a steadily-employed, thirty-nine year old African-American who is married and lives in the East New York neighborhood of Brooklyn.

5. Defendant CITY OF NEW YORK is a Municipal Corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendant "JOHN" SMITH was at all times relevant a duly appointed and acting Police Lieutenant employed by the New York City Police Department and assigned to the 75th Precinct in Brooklyn, New York. Defendant SMITH, at the time of the events complained of, had direct supervisory responsibility over the other individual defendants. On the evening in question, defendant SMITH was leading a Field Training Unit.

7. Defendant "JOHN" GOLDMAN was at all times relevant a duly appointed and acting Police Officer employed by the New York City Police Department and assigned to the 75th Precinct in Brooklyn, New York. On the evening in question, defendant GOLDMAN was defendant SMITH's driver.

8. Defendant DAVID DESIMONE, Shield 11704, was at all times relevant a duly appointed and acting Police Officer employed by the New York City Police Department and assigned to the 75th Precinct in Brooklyn, New York.

9. Defendant JOHN DOE was at all times relevant a duly appointed and acting Police Officer employed by the New York City Police Department and assigned to the 75th Precinct in Brooklyn, New York. He is a male Caucasian, clean shaven and in his mid-twenties, approximately five foot nine inches in height with a medium build and weighing about one hundred eighty pounds.

10. At all times relevant, defendants SMITH, GOLDMAN, DESIMONE and JOHN DOE (together, the "individual defendants") were acting under color of state law.

11. The individual defendants involved in the incidents underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by defendant City of New York.

Notice of Claim

12. On or about May 17, 2010, and within ninety days after claims arose, plaintiff filed a Notice of Claim upon defendant the City of New York, by delivering copies thereof to the person designated by law as a person to whom such claims may be served.

13. The Notice of Claim was in writing and was sworn to by the plaintiff, and contained the name and post office address of the plaintiff.

14. The Notice of Claim set out the nature of the claims, the time when, the place where and manner by which claims arose, and the damage and injuries claimed to have been sustained.

15. The New York City Comptroller's office assigned the case claim number 2010PI015830.

16. The City of New York has neglected and failed to adjust the claims within the statutory time period.

17. This action was commenced within one year and ninety days after the happening of the events upon which claims are based.

Facts Underlying
Plaintiff's Claims for Relief

18. On May 25, 2009 at approximately 11:30 p.m. at and in front of 536 Wyona Avenue in Brooklyn, New York, individual defendants unlawfully assaulted and arrested Derrick Mason.

19. Plaintiff and family and friends were gathered for a Memorial Day barbecue at the home of family friends, Esther Rios and Sherwin Lockhardt, at 536 Wyona Avenue in Brooklyn. The barbecue was winding down when the four defendants arrived in a police automobile.

20. Lieutenant Smith stood by as one or more of the individual defendants proceeded to question Sherwin Lockhardt, who was thereafter issued Criminal Court Summons 431902122-8 by defendant Goldman alleging unreasonable noise in violation of New York City Administrative Code §24-244.

21. As Mr. Lockhardt was being questioned, Mr. Mason walked over towards Lieutenant Smith and asked in a polite and conversational tone if "everything was okay," to which Smith replied "everything's okay."

22. As Mr. Mason walked back across the street to 536 Wyona, one of the defendants, believed to be Goldman, told Mr. Mason to "mind your fucking

business,” to which Mr. Mason, without raising his voice or breaking stride, replied “fuck you.”

23. Defendant Desimone then approached plaintiff, who was now standing on the steps to the building, and said “so you want to be an asshole?” and demanded identification. Plaintiff first said “no” and questioned Desimone as to why he needed the identification. Plaintiff then took his New York State Non-Driver Photo ID Card from his wallet and tossed it to the ground by Officer Desimone’s feet, saying “here.”

24. Defendant Desimone grabbed Mr. Mason by the left wrist and pulled him down the stairs. Mr. Mason fell to the sidewalk.

25. Individual defendants, among other things, pushed a knee into plaintiff’s back, pushed his head and face to the ground and twisted his arms.

26. The individual defendants drove Mr. Mason to the 75th Precinct Stationhouse, where he received medical care from Emergency Medical Technicians while handcuffed. He remained handcuffed for six-seven hours.

27. One or more of the individual defendants and other New York City Police personnel conferred and decided to charge Mr. Mason, and defendant Desimone eventually provided false sworn statements in support of the prosecution.

28. Mr. Mason was taken to Brooklyn Central Booking and arraigned under Kings County Criminal Court Docket No. 2009KN041439 on the false charges of assault in the third degree (PL §120.00(1), a misdemeanor punishable by up to one year in jail), resisting arrest (PL §205.30, a misdemeanor punishable by up to one year in jail), disorderly conduct (PL §240.20 1 and 3, violations

punishable by up to fifteen days in jail) and harassment in the second degree (PL §240.26(1), a violation punishable by up to fifteen days in jail). A felony charge of Assault in the Second Degree was dismissed at arraignment.

29. Plaintiff was released on his own recognizance and ordered, under threat of arrest, to appear in Court on July 13, 2009.

30. Derrick Mason was, in fact, required to appear in Criminal Court nine times over eleven months until the charges were adjourned in contemplation of dismissal on the motion of the District Attorney on April 21, 2010.

31. In the Criminal Court Information sworn to by defendant Desimone, he claimed that Mr. Mason yelled “fuck you, cops” and that a “crowd of twenty people had gathered.” He further claimed that Mr. Mason refused to provide identification and then used his hands to push Desimone down a “set of stairs,” that there was a “struggle,” that plaintiff “flail[ed]” his arms and that Desimone suffered scratches to his arm, substantial pain and fear.

32. Other Police documents state that Mason was attempting to prevent defendant Goldman from issuing the Criminal Court Summons to Mr. Lockhardt, punched and kicked officers and refusing to be handcuffed, causing injury to Officer Desimone.

33. Despite the individual defendants' claim of a man shouting profanities, attempting to prevent issuance of a noise Summons, pushing a Police Officer down stairs, kicking and punching officers and violently refusing to be handcuffed, the District Attorney, on April 21, 2010, asked that the charges be adjourned in contemplation of dismissal.

34. The individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the misconduct to which Mr. Mason was subjected.

35. In addition to physical injuries and pain, defendants' acts and omissions caused Mr. Mason to suffer emotional upset, shock, fright and deprivation of his constitutional rights, among other injuries. Mr. Mason suffered the debasement of being publicly brutalized, unlawfully arrested and subjected to the indignities and privations of New York City's arrest-to-arraignment process. He lost a day of work for each Court appearance.

36. Plaintiff suffered physical pain and injuries, including, among other things, a quarter-sized abrasion/cut to his left cheek, a 2-3 inch bruise by his left temple, headaches for about a month, a 2 inch gash to his left shoulder, scrapes and cuts to the back of his left hand and cuts and/or bruising to both knees and both wrists. Plaintiff still suffers from pain and stiffness in his left shoulder and has received medical care from his physician.

37. The individual defendants, at all times relevant, and in arresting and imprisoning plaintiff, in offering false evidence to the District Attorney and to a Judge of the Criminal Court of the City of New York, acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and well-being.

FIRST CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE FORCE UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

38. Plaintiff repeats the allegations of paragraphs 1-37 above as though fully stated herein.

39. By the actions described above, the individual defendants deprived Mr. Mason of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free from excessive and unreasonable force.

40. As a consequence thereof, Derrick Mason has been injured.

SECOND CLAIM FOR RELIEF
FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE FORCE UNDER ARTICLE ONE,
SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION

41. Plaintiff repeats and realleges paragraphs 1-37 as though fully stated here.

42. By the actions described above, the individual defendants deprived Derrick Mason of rights secured by the New York State Constitution, including, but not limited to, the right to be free from excessive and unreasonable force.

43. As a consequence thereof, Derrick Mason has been injured.

THIRD CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

44. Plaintiff repeats the allegations of paragraphs 1-37 as though fully stated herein.

45. By the actions described above, the individual defendants deprived Mr. Mason of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

46. As a consequence thereof, Derrick Mason has been injured.

FOURTH CLAIM FOR RELIEF
FOR VIOLATING PLAINTIFF'S RIGHT
TO BE FREE FROM UNREASONABLE SEIZURES UNDER ARTICLE
ONE, SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION

47. Plaintiff repeats and realleges paragraphs 1-37 as though fully stated here.

48. By the actions described above, the individual defendants deprived Derrick Mason of rights secured by the Constitution of the State of New York, including, but not limited to Mr. Mason' right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

49. As a consequence thereof, Derrick Mason has been injured.

FIFTH CLAIM FOR RELIEF FOR MALICIOUS PROSECUTION
IN VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

50. Plaintiff repeats the allegations of paragraphs 1-37 as though fully stated herein.

51. The individual defendants, without probable cause and with actual malice, commenced or allowed the commencement of a criminal proceeding against Mr. Mason.

52. The criminal proceeding terminated in a manner not inconsistent with innocence when, on the motion of the District Attorney's Office, the prosecution was adjourned in contemplation of dismissal and thereafter dismissed and sealed.

53. Mr. Mason suffered a deprivation of liberty resulting from government seizure in the form of legal process, being compelled, under threat of issuance of an arrest warrant and arrest, to appear in Criminal Court to contest the baseless charge.

54. As a consequence thereof, Derrick Mason has been injured.

SIXTH CLAIM FOR RELIEF FOR MALICIOUS PROSECUTION

55. Plaintiff repeats the allegations of paragraphs 1-37 as though fully stated herein.

56. By reason of the foregoing, plaintiff was maliciously and without probable cause subjected to a criminal prosecution, said prosecution ending in a manner not inconsistent with innocence.

57. As a consequence thereof, Derrick Mason has been injured.

SEVENTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

58. Plaintiff repeats the allegations of paragraphs 1-37 as though fully stated herein.

59. The individual defendants, and each of them, failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Mason was subjected, despite having a reasonable opportunity to do so.

60. As a consequence thereof, Derrick Mason has been injured.

EIGHTH CLAIM FOR RELIEF FOR NEGLIGENCE

61. Plaintiff repeats the allegations of paragraphs 1-37 as though fully stated herein.

62. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to instruct, supervise, monitor and control its Police Officers, including instructing, supervising, monitoring and controlling the individual defendants herein.

63. Defendant City's enforcement of laws without adequate training, supervision, monitoring or control directly resulted in the illegal seizure, arrest and prosecution of Derrick Mason and others, and allowed Officer Desimone and the other defendants to believe they could with impunity present false evidence and testimony.

64. By reason of the foregoing, the defendant City of New York through its agents, servants, and employees, failed and refused to use such care in the performance of their duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

65. As a consequence thereof, Derrick Mason has been injured.

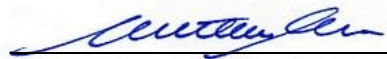
Request for Relief

WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

- (A) Declaratory relief as follows:
 - 1. A declaration that plaintiff's right to be free from unreasonable seizures under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
 - 2. A declaration that plaintiff's right to be free from unreasonable seizures under the New York State Constitution was violated;

3. A declaration that plaintiff's right to be free from unreasonable force under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
 4. A declaration that plaintiff's right to be free from unreasonable force under the New York State Constitution was violated;
 5. A declaration that plaintiff's right to be free from malicious prosecution under the United States Constitution was violated;
- (B) Compensatory damages in an amount to be fixed at trial;
- (C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages from the individual defendants in an amount to be fixed at trial;
- (D) An award to plaintiff of the costs and disbursements herein;
- (E) An award of attorney's fees under 42 U.S.C. §1988; and
- (F) Such other and further relief as this Court may deem just and proper.

Dated: December 30, 2010
Brooklyn, New York


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